

SIRABA ORGANIC™

CERTIFIED • VERIFIED • QUALIFIED

MUTUAL NON-DISCLOSURE & CONFIDENTIALITY AGREEMENT

Document Ref: NDA-67039a8c12b4e89f01234568-v1.0 | Effective Date: 5 October 2026

This **MUTUAL NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT** (the "**Agreement**") is entered into as of **5 October 2026** ("**Effective Date**"), by and between:

1. SIRABA ORGANIC PRIVATE LIMITED, operating the online marketplace and business ecosystem at www.sirabaorganic.com (hereinafter referred to as "**SIRABA**", which expression shall, unless repugnant to the context, include its affiliates, successors, and assigns) of the **FIRST PART**;

AND

2. Noor Saffron & Spice Guild, a Sole Proprietorship having its registered address at **Kashmir Saffron Park, Ladhoo Road, Pampore, Jammu and Kashmir - 192121**, represented by its authorized signatory **Ghulam Mohammad**, Managing Partner (hereinafter referred to as the "**Vendor**", which expression shall, unless repugnant to the context, include its successors and permitted assigns) of the **SECOND PART**.

SIRABA and the Vendor are individually referred to as a "**Party**" and collectively as the "**Parties**". The Party disclosing Confidential Information is referred to as the "**Disclosing Party**", and the Party receiving Confidential Information is referred to as the "**Receiving Party**".

RECITALS

WHEREAS, the Parties are exploring or currently engaged in strategic business relationships, wholesale/B2B commerce, institutional supply, product compliance verification, organic certification audits, and commercial collaboration on the SIRABA ORGANIC™ marketplace platform (the "**Purpose**"); and

WHEREAS, in connection with the Purpose, each Party may disclose to the other certain non-public, proprietary, or confidential technical, operational, sourcing, financial, or commercial information; and

WHEREAS, the Parties desire to formally define the terms and conditions under which such Confidential Information shall be treated and protected.

NOW, THEREFORE, in consideration of the mutual promises and covenants set forth herein, the Parties agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

1.1. "**Confidential Information**" means any and all proprietary, technical, business, financial, operational, or trade-secret information disclosed by or on behalf of the Disclosing Party to the Receiving Party, whether orally, in writing, electronically, or by inspection of tangible objects, including but not limited to:

- Proprietary product formulations, recipes, ingredient origins, farm-to-fork batch traceability data, and accredited testing results;
- Wholesale pricing models, supplier identities, farmer producer networks, procurement volumes, and supply chain logistics;
- Customer data, user lists, marketplace analytics, algorithm mechanisms, and marketing strategies;

- Any information that is designated as "Confidential" or "Proprietary", or that by its nature reasonably should be understood to be confidential.

2. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

2.1. Confidential Information shall not include information that:

- Is or becomes publicly known through no breach of this Agreement by the Receiving Party;
- Was already in the rightful possession of the Receiving Party prior to disclosure without restriction on disclosure;
- Is independently developed by the Receiving Party without reference to or reliance upon the Disclosing Party's Confidential Information;
- Is rightfully received by the Receiving Party from a third party without duty of confidentiality.

3. OBLIGATIONS OF THE RECEIVING PARTY

3.1. **Duty of Care:** The Receiving Party shall protect the Confidential Information using the same degree of care it uses to protect its own confidential information of like nature, but not less than a reasonable degree of care.

3.2. **Restricted Use:** The Receiving Party shall use the Confidential Information solely for the Purpose and shall not exploit such information for its own independent commercial benefit outside the scope of collaboration with the Disclosing Party.

3.3. **Limited Disclosure:** The Receiving Party shall disclose Confidential Information only to its officers, directors, employees, and authorized professional advisors who need to know such information for the Purpose and who are bound by confidentiality obligations at least as restrictive as those contained herein.

3.4. **No Reverse Engineering:** Neither Party shall decompile, disassemble, reverse engineer, or attempt to derive proprietary chemical formulations, algorithms, or sourcing networks from any sample, prototype, or data provided.

4. COMPELLED LEGAL DISCLOSURE

4.1. If the Receiving Party is legally compelled by court order, subpoena, statutory regulation, or governmental authority (including FSSAI or law enforcement) to disclose any Confidential Information, it shall provide prompt written notice to the Disclosing Party (to the extent legally permissible) to enable the Disclosing Party to seek a protective order or appropriate remedy.

5. TERM AND SURVIVAL

5.1. This Agreement shall take effect as of the Effective Date and shall remain in effect for two (2) years, or until superseded by a definitive enterprise master agreement.

5.2. The obligations of confidentiality and non-disclosure under this Agreement shall survive termination or expiration for a period of three (3) years from the date of disclosure; provided that trade secrets and proprietary formulations shall remain confidential indefinitely.

6. RETURN OR DESTRUCTION OF MATERIALS

6.1. Upon written request of the Disclosing Party or upon termination of the business relationship, the Receiving Party shall promptly return or certify the secure destruction of all tangible and electronic copies of Confidential Information, except to the extent retention is required by Applicable Law or automated archival backups.

7. REMEDIES AND INJUNCTIVE RELIEF

7.1. The Parties acknowledge that unauthorized disclosure or use of Confidential Information will cause irreparable injury for which monetary damages alone may be inadequate. Accordingly, the Disclosing Party shall be entitled to seek injunctive relief, specific performance, and other equitable remedies in any court of competent jurisdiction without the requirement of posting a bond.

8. GOVERNING LAW AND JURISDICTION

8.1. This Agreement shall be governed by, interpreted, and construed in accordance with the laws of the Republic of India.

8.2. Any legal dispute or proceeding arising out of or related to this Agreement shall be subject to the exclusive jurisdiction of the competent courts in New Delhi, India.

EXECUTION AND ELECTRONIC SIGNATURE

IN WITNESS WHEREOF, the Parties have caused this Mutual Non-Disclosure and Confidentiality Agreement to be executed electronically by their authorized representatives as of the date and time recorded below.

PARTY 1 — MARKETPLACE OPERATOR SIRABA ORGANIC PRIVATE LIMITED Authorized Signatory: <i>Legal & Compliance Directorate</i> Designation: Authorized Legal Representative Execution Status: Valid & Effective Ref: SIR-NDA-VERIFIED	PARTY 2 — VENDOR COUNTERPARTY Noor Saffron & Spice Guild Signatory Name: Ghulam Mohammad Signatory Designation: Managing Partner Execution Timestamp: 2026-10-05T10:30:00.000Z Signatory IP Address: 103.24.88.12 Signatory User-Agent: Mozilla/5.0 (Windows NT 10.0; Win64; x64) Chrome/128.0.0.0 Safari/537.36 SHA-256 Verification Hash: a8b1c44298fc1c149afb4c8996fb92427ae41e4649b934ca495991b7852b999
--	--